

HILLDALE CONDOMINIUM ASSOCIATION

RULES/REGULATIONS BOOK

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I. DEFINITIONS

In the event a term is used in the Rules which is not defined anywhere herein, its definition shall be determined by referring, in the order which follows, to its definition as used either in the Declaration, or in the Bylaws, or in its common usage within the Association, or in its commonly understood meaning as indicated both by the context in which it is found by its dictionary definition, wherever it first may be found.

- A. Declaration - The Declaration of Condominium Ownership and the Easements, Restrictions, Covenants and Bylaws for Hilldale Condominium Association which was recorded in the Office of the Recorder of Deeds of Cook County, Illinois on October 26, 1977 as Document No. 25211897, and as amended from time to time thereafter.
- B. Bylaws - The Bylaws of Hilldale Condominium Association, and as amended from time to time thereafter.
- C. Property - All the real property, against which the Declaration has been recorded, including any improvements thereon.
- D. Act - The Illinois Condominium Property Act, as amended from time to time.
- E. Association - The Hilldale Condominium Association, an Illinois Not-for-Profit corporation and a Condominium organized pursuant to the Illinois Condominium Property Act.
- F. Board - The Board of Directors of the Association.
- G. Rules or Rules and Regulations - The Rules and Regulations of the Association, as adopted pursuant to the powers available to the Association and the Board.
- H. Common Property - The Common Elements of the Association, as defined in the Act and the Declaration.
- I. Unit - A portion of the Property which is owned exclusively by a Unit Owner.
- J. Owner or Unit Owner - The owner or owners of a Unit, as revealed by the public records, including a Contract Seller and excluding a Contract Purchaser, expressly provided otherwise by the Declaration or by State Law. Where the Owner is a trust, the beneficial owner of the trust and any person having the exclusive power of direction over the trust, shall be deemed to have personal responsibility for the Unit to the same extent as if title to the property were held in the name of such person or persons.
- K. Member or Member of the Association - A Unit Owner.
- L. Resident - Any person who resides on the Property, including families of Unit Owners and tenants of Unit Owners and including a Unit Owner if the context so indicates.

- M. Common Expense or Assessment - Any amount which the Board may assess or levy against a Unit Owner, either individually or collectively, including regular monthly assessments, special assessments, and charges or expenses or assessments which are levied pursuant to the Declaration, Bylaws or the Rules and Regulations.
- N. Managing Agent or Manager - The person or entity, if any, which has been employed by the Association to manage the day-to-day administration of the Property in the manner directed by Board.
- O. Permitted Vehicles - Passenger-type automobiles in a fully driveable and operable condition and specifically excluding limousines or hearses whether or not used for personal purposes; or lightweight recreational motor vehicles, excluding campers, provided, however, that lightweight recreational vehicles shall have a "B", "RV", or other passenger license plate, shall have no more than four (4) wheels, shall have a curb weight of less than eight thousand pounds (8,000 lb.), shall have an overall length of less than twenty feet (20 ft), shall have overall width of less than seven feet (7 ft), shall be capable of being driven into a Unit's carport and stored in a Unit's carport and shall be of a design, which, in the reasonable determination of the Board, does not impede entry to and exit from a Unit when parked in a parking space or carport; or motorbikes and motorcycles, provided that each of the foregoing is registered and licensed to be ridden on public roads and highways.
- P. Emergency Vehicles - Ambulances and hospital or medical vehicles or any type; or fire fighting vehicles of any type; or police protection vehicles of any type; or snow plowing vehicles; or Permitted Vehicles, provided that each of the foregoing is being utilized for emergency purposes for the health, safety and welfare of the Unit Owners, Residents and other persons on the Property.
- Q. Non-permitted Vehicles - All vehicles other than those defined above as Permitted Vehicles or Emergency Vehicles; or any vehicles without valid state license plates and appropriate municipal vehicle stickers, if required, or commercial vehicles of any type or kind, including commercial vans having commercial advertising on the body thereof, unless they meet the size limitations of paragraph "o" and are used for emergency purposes of their employers.
- R. Abandoned Vehicle - Any vehicle which is in a state of disrepair rendering it incapable of being driven in its present condition; or which has not been used or moved for at least seven (7) consecutive days; or which does not have a current, valid vehicle license plate and municipal vehicle sticker, if required; or which is such that the acts of the vehicle owner and the condition of the vehicle clearly indicate it has been abandoned; or which does not have a current Hilldale vehicle sticker, if required.
- S. Management Office - An office used by the Association on the Property which is located at 1750 Manchester, Hoffman Estates, Illinois 60169.

II. POLICIES AND PROCEDURES REGARDING ENFORCEMENT

- A. Any complaint which alleges a violation of the Declaration, Bylaws or Rules and Regulations shall be made in writing and shall contain substantially the same information as that set forth in the Witness Statement attached hereto as Exhibit A. At a minimum, the complaint shall set forth:
1. The name, address and phone number of the complaining witness.
 2. The Unit Owner's name, Unit number or address of the Unit where the person or Resident complained of resides.
 3. The specific details or description of the violation, including the date, time and location where the violation occurred.
 4. A statement by the complaining witness that he or she will cooperate in the enforcement procedures and will provide testimony at any hearings or trial which may be necessary.
 5. The signature and address of the complaining witness and the date on which the complaint is made.

The Association recommends that photographs or tape recordings be taken, if possible, to illustrate the nature of the violation. Any such photographs or tapes should be sent with the Witness Statement or forwarded as soon as possible. The name of the person who took the photograph or made the tape and the date on which it was taken or made should be included.

- B. When a complaint is made pursuant to the above, the Unit Owner shall be notified of the alleged violation by the Association or its duly authorized agents. The notification shall be in a manner prescribed by the Board in a form similar to that which is attached hereto as Exhibit B (hereafter "Notice of Violation").

In the event the alleged violation is not the first violation by the Unit Owner, or in the event the violation is such that serious, immediate or irreparable consequences may occur by delay, the Board may elect to forward the matter to the Association's attorney for appropriate action. If the Unit Owner is found guilty of the violation, all legal expenses and costs incurred will be assessed to the Unit Owner's account.

The Association's attorney, if contacted regarding the violation, shall send such notices, make such demands or take such actions as are necessary to protect the interests of the Association in accordance with the provisions of the Declaration, Bylaws or Rules and Regulations of the Association.

- C. If any Unit Owner charged with a violation either believes that no violation has occurred or that he has been wrongfully or unjustly charged hereunder, the Unit Owner must proceed as follows:

1. Within twenty one (21) days after the Notice of Violation has been served on the Unit Owner pursuant to the provisions herein, the Unit Owner must submit in writing, a request for a hearing concerning the violation. A hearing may be requested by completing the Request for Hearing form, which is attached to the Notice of Violation, and by returning it to the Association.
 2. If a request for a hearing is filed, a hearing on the complaint shall be held before a panel (hereafter "Panel of Inquiry") composed of at least a quorum of Board members or a committee duly appointed by the Board to hear the complaint. The Panel of Inquiry shall not include any persons presenting evidence in the hearing.
 3. At any such hearing, the Panel of Inquiry shall hear and consider arguments, evidence or statements regarding the alleged violation, first from any person or persons having direct knowledge of the alleged violation and then from the alleged violator and any witnesses on his behalf. Following a hearing and due consideration, the Panel of Inquiry shall issue its determination regarding the alleged violation. The decision of the Panel of Inquiry shall be made by majority vote and shall be final and binding on the unit owner and the Association.
 4. Payment of any assessments, charges, costs or expenses made pursuant to the provisions contained herein shall not become due and owing until the Panel of Inquiry has completed its determination. Notification of the Panel of Inquiry's determination shall be made in a form similar to that which is attached hereto as Exhibit C.
- D. If no request for a hearing is filed within twenty one (21) days, a hearing will be considered waived, the allegations in the Notice of Violation shall be deemed admitted by default, and appropriate sanctions shall be imposed. The Unit Owner shall be notified by the Association of any such determination using the same form and in the same manner as if a hearing had been conducted by a Panel of Inquiry.
- E. If a Unit Owner is found to have violated personally or is otherwise liable for a violation of any of the provisions of the Declaration, Bylaws, or Rules and Regulations of the Association, the following shall occur:
1. If found to be guilty of a first violation, the Unit Owner shall be notified of the finding by the Association or its duly authorized agents that a first violation has occurred. The first violation, at the discretion of the Board, may be considered a warning that, if any further violations occur, a fine for the violation will be imposed. In the alternative, the Board may elect to assess a fine, after considering factors such as the length of time the regulation has been in effect, the length of time the violator has owned a Unit or resided on the property, whether the violation was committed by the Unit Owner, and if not, the extent of control the Unit Owner had or should have had over the violator's conduct, the familiarity of the violator with the regulation, the severity of the violation and other appropriate factors.

In addition, any legal expenses incurred by the Association or any actual damages repaired at Association expense may be imposed.

2. If found to be guilty of a second or continuing violation, the Unit Owner shall be notified of the finding by the Association or its duly authorized agents. The Unit Owner shall also be assessed a fine.
3. A FINE FOR A VIOLATION OF A CONTINUING NATURE WILL CONTINUE UNTIL THE VIOLATION HAS BEEN ELIMINATED AND THE ASSOCIATION HAS RECEIVED NOTICE OF IT.
4. If found to be guilty of any violation, including a first violation, the notice of determination may also require the Unit Owner to correct any damage or any unauthorized condition on the Property for which the Unit Owner has been found responsible, to pay the costs of any repairs which have previously been made, or to pay any legal expenses and costs incurred by the Association as a result of the violation.
5. In the event any violation has resulted in damage to any Common Property, which has not yet been repaired, or has resulted in any damage or any unauthorized condition on the Property, the Unit Owner will be given two notices of violation to correct the damage or architectural violation. If the damage or violation has not been corrected within fourteen (14) days after a finding of guilty has been made on the second violation, the Association will proceed to have the violation corrected, and the Unit Owner will be Assessed for the full cost of labor and materials required.

In addition to the foregoing assessment, and in order to encourage Unit Owners to correct violations at their own time and expense, and in order to compensate the Association for the administrative expenses involved in obtaining and supervising any such correction, the Association will assess any Unit Owner, who forces the Association to correct a violation, with an additional administrative charge of one hundred dollars (\$100.00) or ten percent (10%) of the cost of labor and materials, whichever is greater.

- F. Any Unit Owner assessed hereunder shall pay any charges imposed within thirty (30) days of notification that such charges are due. Failure to make the payment on time shall subject the Unit Owner to all of the legal or equitable remedies necessary for the collection thereof. All charges imposed hereunder shall be added to the Unit Owner's account, shall become a special assessment against the Unit and shall be collectible as a Common Expense in the same manner as any regular or special assessment against the Unit.
- G. Time is of the essence of this policy. Notices are deemed served either:
1. By personal delivery at the time of delivery; or
 2. By mail following two (2) days after deposit in the United States Mail, provided that the notice has been sent both by regular first class and by certified mail - return receipt requested, postage prepaid, to the Unit Owner at the Unit address, or to such other address as the Unit Owner shall be previously filed with the Board,

and further provided that either the return receipt has been signed and returned or that the notice sent by regular mail has not been returned to the Association undelivered. For Units held in trust, the notices may be sent either to the address of the trustee, or to such address as has been provided to the Association by the trustee or the beneficial owner of the trust.

- H. The remedies hereunder are not exclusive, and the Board may, in addition, take any action provided at law, in equity, or in the Declaration and Bylaws to prevent or eliminate violations thereof or of the Rules and Regulations of the Association.

I. Table of Fines for Violations

Daily Violation:	\$10 per day
1st Violation:	\$75
2nd Violation:	\$150
3rd Violation:	\$200

Lack of Insurance Proof: \$10 per day until proper proof of insurance is provided and fully in effect.

Failure to respond to required maintenance requests for common utilities: \$50/incident

III. GENERAL RULES

All rules, regulations, restrictions and covenants contained in the Declaration and Bylaws are incorporated as part of these rules and regulations and are subject to the enforcement policies set forth in the final section of these comprehensive rules and regulations. To the extent that the provisions of applicable law, the Declaration, Bylaws or the Rules and Regulations are in conflict, the provisions of applicable law shall first control, followed by the provisions of the Declaration, the Bylaws and the Rules and Regulations, in that order.

These Rules and Regulations are binding on all Unit Owners, Residents, their families and guests under Article XIV, Section 14.05 of the Association's Declaration and Section 18 (n) of the Illinois Condominium Property Act, as amended from time to time. Exceptions to the Rules may be made only in writing, signed by the Board or its duly authorized agents following a written request by a Unit Owner.

IV. RULES REGARDING THE USE AND APPEARANCE OF THE PROPERTY

A. Alterations

No alterations of any kind may be made to the exterior portions of any building, including roofs, siding and the like.

B. Antennas/Satellite Dishes

Antennas/Satellite Dishes are installed by Satellite Provider on the common elements for each Unit's use.

1. Antenna service will replace the current master antenna. Master antenna service via antenna will be installed to Units not choosing Satellite Provider, at no expense, to homeowners for a year period of time to end January 1, 2000. After February 1, 2000, per Declaration, user fees may be enacted.

2. Satellite service will be installed as part of service agreement with Satellite Provider for homeowners who will be using satellite service.

3. No other antenna or satellite dish will be authorized for installation on the common elements.

4. Homeowners have the choice of Village of Hoffman Estates contracted cable company, Satellite Provider, or Master Antenna local TV connection.

5. Per terms of contract with Satellite Provider, Sky Communications / Dish Network or Comcast (or its successor), providers will be responsible for all maintenance of equipment. Satellite provider will supply access to master antenna connection at expense (installation and monthly fee) of homeowner. (revised 5/01)

All rules are enacted to ensure safety and protection of the property and its' residents. FCC regulations are applicable and must be complied with, including any updates from 11/29/05 forward.

6. As a result of exposure issues related to some of the units and the need for master antenna, Sky Communications was contracted to provide satellite service on the property through use of an installed dish on the common element, roof. Any residents who desire either master antenna or satellite service must use this provider if they want to connect to the installed dish on the roof, through the term of the contract. Should services requested not be available through Sky Communications, residents should notify management to advise of alternate satellite service requests prior to installation.

a) Size

In accordance with the Federal Communications Commissions rules governing Over-the-Air Reception Devices, Members may only install Satellite Dishes ("dish") that are one meter or less in diameter. One meter is equal to 39.37 inches, and diameter is measured across the widest part of the dish.

b) Location

Members may not install a Dish on any common area. Each Dish must be installed on a Member's Exclusive Use Area only. Each Dish shall be placed in the location that allows reception of a signal of acceptable quality without unreasonably increasing the cost of the installation or unreasonably delaying the installation.

c) Ingress and Egress

Members agree that each Dish and its appurtenances shall be placed so as to avoid blocking any fire exit, walkway, ingress or egress from an area, fire lane, fire hose, fire extinguisher, safety equipment, electrical panel, water shut-off valve, or other area necessary for the safe operation of the Community. The purpose of this rule is to allow Members to evacuate their Units and Community in the event of an emergency and to provide clear access for emergency personnel.

d) Maintenance and Repair

The Member shall be responsible for the maintenance of the Dish installed by the Member or one of the Member's residents. Maintenance and repair shall include, but not be limited to:

1) Reattachment or removal within 72 hours of dislodgment from its original point of installation.

2) Repainting or replacement, if for any reason the exterior surface of the Dish becomes worn, disfigured, or deteriorated, provided that any repainting doesn't interfere with any acceptable quality signal;

3) Repair or replacement, if for any reason the Dish no longer retains its original condition; and

4) Repair or replacement to prevent the Dish from becoming a safety hazard.

Should the Member fail to maintain the Dish properly, the Association may fine the Member, following notice and opportunity for hearing, and take such further action, as permitted by Declaration or statute. Except in an emergency, the Board shall notify the Member in writing that the Dish requires maintenance, repair or replacement, and that such maintenance, repair, or replacement must be completed within 30 days of such notification unless extended by the Board. If any required work is not completed within the time period for completion of the repair, maintenance, or replacement, the Association may remove and/or repair the Dish at the expense for the Member, such expense being added to the Member's assessment.

1) The Member is responsible for all costs associated with the Dish;

2) Repair damages to the common elements, the Unit, other units, and other property caused by the installation, existence or use of the Dish;

3) Pay for medical expenses incurred by persons injured by the installation, existence, or use of the Dish; and

4) Reimburse resident or the Association for damages caused by the installation, existence, or use of the Dish.

C. Awnings or Sunroofs

No awning, sunroof, canopy or shutter of any type is permitted.

D. Balconies & Patios

1. Unit Owners shall keep balconies and patios clean, orderly and free from clutter.

2. Balconies and patios may not be decorated, enclosed, altered, or have the appearance changed in any way, without the prior written consent of the Board.

3. Balconies and patios may not be used for storage, other than for seasonal storage of lawn chairs, bicycles and other items usually associated with patios and balconies. For safety reasons and the rights of others, nothing used on a patio can be taller than the fence line as a general rule of thumb with the exception of a standard, properly anchored patio umbrella for use during the months of May-October. (revised 11/05)

4. Clothing, sheets, blankets, laundry and similar objects shall not be hung out or exposed on balconies or patios.

5. Balconies and patios must not be used as animal bathrooms.

6. The use of any grill, hibachi, or smoker or other source of fire or heat within five feet (5') of building or overhang or balcony (due to wooden structure) is prohibited. In addition, the storage of any heat source specifically noted or implied is forbidden. (revised 5/01)

7. Landscaping cannot be higher than the fence line or so close to the fence that it causes the fence or shared fence panels to be damaged or inaccessible. (revised 11/05)

8. Balcony surfaces are to be stained with Benjamin Moore Moorwood Deck Stain. The specified stain is 100% Acrylic Latex Solid Stain. The specified color is Briarwood. If balcony is carpeted with indoor/outdoor carpet, it is grandfathered through 2006. (added 11/05)

E. Carbon Monoxide Detectors

In accordance with the Illinois Carbon Monoxide Alarm Detector Act, each dwelling unit shall be equipped with at least one carbon monoxide alarm in operating condition within 15 feet of each room used for sleeping purposes. The purchase and installation of the carbon monoxide alarm is the responsibility of the owner. The testing and maintenance of the alarm is the responsibility of the resident(s) of the unit. (Per IL H.B. 5284-05/08/06)

F. Carpet/Flooring

When replacing carpet or flooring in a unit that is above another unit (2nd or 3rd floor) owner must (or contract to) have subfloor screwed down and reset nails that have popped to prevent movement of subfloor which causes noise/squeaking.

If installing a hardwood floor, ceramic or laminate flooring on any unit 2nd or 3rd floor unit, prior written permission must be obtained to insure a proper installation which does not create additional noise for the unit below. (11/05)

G. Clubhouse (Party Room)

1. The Clubhouse shall be used only for private social functions of Unit Owners and Residents, and for social or business functions of the Association.
2. Application for use of the Clubhouse for a private party will be accepted only from the Unit Owner or Resident. The Unit Owner or Resident must be present from the beginning to the end of the party.
3. A Unit Owner who has leased a Unit or who does not reside in the Unit on the Property shall be considered to have surrendered the right to use the Clubhouse and other recreational facilities to the tenant or Resident of the Unit. The Unit Owner assumes full responsibility for the actions of the tenants and Residents of the Owner's Unit.
4. The Clubhouse may be reserved for a private party by submitting an application to the Management Office. Reservations will be accepted on a first come, first served basis. There will be a charge for the use of the Clubhouse. In addition, there will also be a security deposit which will be returned if the Clubhouse is cleaned and left in good condition. The security deposit and fee for use of the Clubhouse must be submitted along with the application to reserve the Clubhouse. The amounts for the security deposit and use of the Clubhouse will be established from time to time by the Board and are available upon request.
5. The Unit Owner or Resident who reserves the Clubhouse is responsible for any damage which is caused to any portion of the Property which is caused by anyone at the party. Any damage to any of the areas in the immediate vicinity of the party shall be assumed to have been caused by a guest at the party unless the damage has been noted in writing on the application in advance of the time the party begins. Any damage and labor charges necessary to repair the damage will first be deducted from the security deposit, and any additional damage will be assessed to the Unit Owner as a Common Expense.
6. All Unit Owners or Residents who use the Clubhouse are required to comply with all applicable laws concerning the serving of alcoholic beverages. Any Unit Owner who fails to insure that there is compliance with the Dram Shop Act and other applicable laws shall be fully liable for any claim or liability which arises from such failure.
7. The hours during which the Clubhouse may be used are limited to 8:00 A.M. to 10:00 P.M. on Sunday through Thursday nights and 8:00 A.M. to 12:00 P.M. on Friday and Saturday. The Clubhouse may not be reserved for private use on Christmas Eve, New Year's Eve or legal holidays. The Board reserves the right to modify the hours for reserving the Clubhouse from time to time.
8. Failure to comply with the above rules may result in denial of further applications to use the Clubhouse.

H. Common Property

1. Storage of any kind is expressly prohibited on or in any Common Property unless the area is expressly designated for such purpose. Townhouse units may purchase storage sheds provided they are not visible above fences. All other units must receive written prior authorization of style/type of shed.
2. All toys, recreation equipment, bicycles, and the like must be removed from Common Property by sunset.
3. Any games or other activity which creates a nuisance, damages any Common Property, or disrupts the peace is prohibited on or in any portion of the Common Property.
4. Unit Owners may not enclose any portion of the Common Property with a fence or other boundaries. Fences which were part of the condominium Property at the time of conversion are pre-existing exceptions to this rule.
5. Any trees or shrubs to be installed on the Property must be approved by the Board or its duly authorized agents, unless otherwise authorized herein.
6. Unit Owners are responsible for keeping lawn areas immediately surrounding their respective Units clean and free from debris.
7. No car repairs of any kind may be performed on the property (exception: repair of flat tire which must be supervised at all times while on jack).
8. **MATS / OUTSIDE FRONT DOORS OF UNITS**
No mats or rugs may be placed in common hallways (interior hall mats). Homeowners who live in townhouses or condos that *do not enter and exit through common hallways* may use door mats with the following exception: All mats must be removed from the sidewalks no later than November 1 annually due to snow removal.
9. As parking is limited and unassigned the use of a Dumpster /P.O.D./Storage unit for the purpose of storing items temporarily is prohibited anywhere on the property without prior approval. If owner desires use of a Dumpster/P.O.D., the cost would be \$50/day, per space, with no more than 3 days maximum use permitted. (11/05)
10. Patio blocks or stepping stones cannot be used anywhere in the common elements. The use produces a trip hazard deemed by property insurer. (added 11/05)
11. Washing of vehicles on any common or limited common property is prohibited, as water is a common expense. (11/05)
12. Motorcycles must be removed from property November 1 annually. Motorcycle parking in common parking lots is allowable from May 1-Oct 31.

I. Damage to Common Property

Any property which is damaged by the conduct of a Unit Owner or by the Owner's family, tenants or guests will be repaired by the Association and specially assessed to the Owner responsible, or, at the Board's option, may be repaired by the Owner at the Owner's expense. Any determination of whether or not the Owner is responsible is subject to Paragraph E(5) of the Policies and Procedures Regarding Enforcement contained in these Rules and Regulations.

J. Garbage and Recycling

1. Garbage and recycling pick-up is contracted through Groot / Village of Hoffman Estates. Groot bills each household at a rate of \$16 per household month, \$1 additional monthly for rolling garbage can supplied Groot. \$6 per month for senior citizen (65 or older, with proof of age required) to the Village of Hoffman Estates.

2. Homeowner/Residents are prohibited from putting bagged trash out until 6:30 a.m. morning of pick-up (Wednesday) or Thursday (Holiday Schedule). Bags and other loose type trash cannot be put out earlier than the day of pick up. Furniture, Groot toter (garbage can) and recycling may be put out after 6:30 p.m. the evening before pick-up.
(added 11/05)

3. Trash must be put out in a bag no smaller than 13 gallons (heavy enough not to blow away). All bags must be securely sealed. (added 11/05)

4. Cat Litter must be double bagged. (added 11/05)

K. Keys

All Unit Owners residing in units where there are master shut-off valves or sprinkler controls for more than two units are responsible for supplying the Management Office with a set of keys to be used in the event of an emergency. If the Owners fail to supply such keys, the Owner will be liable for all damages caused and costs incurred in obtaining entrance to the Unit.

L. Landscaping

Homeowners should be aware that planting is undertaken at your own risk and that no replacements will be made should plants be damaged due to work performance on the property. Prior to digging anywhere, call J.U.L.I.E. to identify utilities

1. No trees of any kind should be planted by individuals in the common elements or limited common elements (within townhouse fences).

2. Shrubs/bushes may be planted in the common elements prior to landscape renovation and subject to prior written approval of landscape improvement application.

3. Shrubs/bushes planted within townhouse fences should be limited to slow growth,

dwarf varieties. At no time should plantings exceed the height of the fence line or obstruct common utility meters.

4. Annual/Perennial flowers or plants in the common elements will be regulated to certain types of plantings and location as determined by the landscape contractor. Wildflower/canned variety flowers may not be used anywhere in the common elements.

A. With written approval of plantings and location, homeowner becomes solely responsible for maintaining plants and weeding bed.

B. If at any time the bed is not maintained properly, the plantings will be removed at owner's expense and the bed will be returned to its original condition.

5. Artificial (silk/plastic) flowers or plants may not be used in the common elements.

6. Fencing, edging, timbers, borders or rocks may not be used to outline beds.

7. Balcony units may use black, vinyl coated wire basket/box hangers on the inside of balcony railings to hold plantings.

8. Townhouse units with first floor exterior brick window sills may use terra cotta colored (plastic or clay type) window box planters. The use of window boxes on second floor window sills is not allowed.

9. Decorative animals, ornaments, birdbaths, etc. may only be used inside townhouse fenced yards or patios only. None of the above may be used in beds or on grass areas within the common elements.

10. Feeding of any wildlife (birds, squirrels, etc.) is strictly prohibited.

M. Laundry Room

Persons who use the Laundry Room are responsible for leaving it clean and leaving it locked. The Association is not responsible for any clothing or other articles left in the Laundry Room.

N. Leafleting

Any person seeking to distribute literature on the Property, other than the United States Mail, shall first deliver a copy of the item to be distributed to the Association and shall state the name, address and phone number of the person sponsoring or distributing the publication. No other information shall be required for the distribution.

O. Maintenance Requests

1. All maintenance requests pertaining to common elements (see Maintenance Table, Exhibit J) should be directed to the Management Office.

2. Call 911 for Fire, Police or Medical Emergencies. Emergencies considered an "Act of God" should be referred to management (flood, tornadoes, etc.). Water damage caused by appliances (water heater or washing machine) should be referred to plumber and personal insurance carrier.

P. Noise

Noise is to be kept at a level not to disturb neighbors on either side, above or below. Noise from home improvements*, radios, television, stereos (especially the bass) should not be played at a level that can be heard in adjoining units. *Hours specified for remodeling are: Monday-Friday 8AM-9PM, Saturday & Sunday 10AM-6PM. (11/05)

Q. Seasonal Decorations

1. Seasonal decorations shall not be installed any earlier than one (1) month before the holiday, and must be removed no later than (1) month after the date of the holiday.
2. No outdoor decorations are permitted except for decorations which can be placed on a Unit's door, patio, or balcony. Any damage caused by the hanging of decorations shall be repaired by the Unit Owner responsible or the cost of repair will be charged to the Unit Owner by the Association.
3. No decorations which create a safety hazard will be permitted.

R. Security

1. If any suspicious activities are observed, notify the police immediately. Write down any license numbers of suspicious vehicles you observe.
2. Each **exterior** door serving a unit must be equipped with a functioning dusk to dawn light fixture. The fixtures must be purchased at cost from the Association and installed no later than October 15, 2001. All fixtures next to ground level entry doors to individual units must be lit nightly from dusk to dawn with the exception of patio entries enclosed by stockade fencing which *may* use motion detector mode. (added 08/01)

S. Signs and Advertisements

All advertising signs for business or commercial activities are prohibited everywhere on the Property. This includes the use of For Sale signs (by owner or real estate company) and For Rent signs. "Open House" signs may be posted only for the day of the open house, after which they must be taken down.

T. Storage Lockers

1. Any items placed in storage lockers are the responsibility of the person or persons using the locker. Any damages incurred by theft, fire, vandalism, water damage and the like are the responsibility of the Owner of the property which was affected.

U. Storm Doors and Windows

1. All doors and windows must conform to the specifications approved by the Board. The Management Office should be contacted for further details and must also be notified prior to installation of any new doors and windows.

2. Doors and windows must be maintained in good repair by the Unit Owner. Once a door or window is installed, maintenance of the door or window becomes the responsibility of the Unit Owner. All doors and windows are the Unit Owner's responsibility.

3. Covering the windows with sheets or paper is prohibited. Outside visible portion of window treatments must be of a neutral color: white or off-white (almond, beige, ecru).

4. The required storm door installation is Larson (Royal Oak), ScreenAway Model # 691-80. The color of the door (Almond or Sandstone) depends on planned renovation color for each building and should be checked with management prior to purchasing. (rev. 11/05)

V. Swimming Pool Rules - Distributed annually prior to pool opening

W. Unit Occupancy

Due to water and gas being common utilities and there being no individual ability to meter or estimate usage the following rules need to be enacted in order to allow for budgeting and equalized expense in accordance with a standardized usage estimate:

Water usage averages: 525,000 gallons per person annually
Gas usage is affected by water usage as well.

1 Bedroom occupancy: 2 persons

2 Bedroom occupancy: 4 people

3 Bedroom occupancy: 6 people

Occupancy above the total number of people per unit budgeted would result in an additional monthly assessment per person of: \$50 per month payable with monthly assessment and subject to applicable late fees. (added 11/05)

X. Utilities - Unit and Common

Unit:

1. Water Shut-off Valves (individual unit shut-off, toilet, sink, dish and clothes washer, water heater) must be functional. When a shut-off controls two (2) units the cost of maintenance/replacement will be billed both residents benefiting from the use of that shut-off.

2. All water supply lines serving: washing machines, toilets, sinks, dish and clothes washer must be fitted with burst free, steel braided variety no later than 12/31/06 or upon sale of the unit prior to 12/31/06. (added 11/05)

Common Gas:

From time to time, the gas provider (NICOR) may be required to perform scheduled maintenance on their equipment which will require building gas (main supply) to be turned off. When you are notified of the need for such maintenance you must respond to the notice as instructed. If management does not receive your response as outlined in the notice, there will be a \$50 fine per occurrence. Further, if the work

scheduled is performed and a homeowner does not comply by being present to re-light the pilot lights in each unit as required by NICOR, the unit will be entered on an emergency basis at the owners total expense plus hourly maintenance fees/management fees to supervise the performance of work by the contractor.

Common Water:

From time to time maintenance, residents or the Village of Hoffman Estates may be required to perform scheduled maintenance on their equipment which will require building water (main supply) to be turned off. When you are notified of the need for such maintenance you must respond to the notice as instructed. If management does not receive your response as outlined in the notice, there will be a \$50 fine per occurrence.

General Maintenance or Annual Maintenance Requirements are included in this ruling.

Minimum fine is: \$50 per incident (added 11/05)

Y. Window Air Conditioning Unit

No window air conditioning units are allowed as all units are equipped with central air conditioning.

V. RULES REGARDING THE ADMINISTRATION OF THE PROPERTY

A. Assessments and Collections

1. All monthly assessments and any special assessments or other lawful charges of the Association are due and payable on the first (1st) day of each month. Any payment of the foregoing which is deposited after the fifteenth (15th) day of the month shall be considered late. All payments received, even if the payment has been designated to be applied to a specified obligation, will be applied to the payment of the oldest outstanding charges before being applied to any current charges.

2. Any payment of less than the full amount of all assessments and other charges which are due in any given month or any payment which is made late shall cause the Unit Owner to be subject to a Late Charge of thirty-five Dollars (\$35.00) for that month which shall be added to and deemed a part of the Unit Owner's Common Expenses. This charge will be consistent with charges stated in declaration and collection policy.

3. Unit Owners who are delinquent in the payment of Common Expenses shall be subject to legal action in accordance with the provisions of the Declaration and Bylaws. Once legal action has been commenced, all legal fees and costs will be assessed to the Unit Owner as required by the Declaration and Bylaws.

B. Board Meetings and Association Records

Board meetings are open to all Unit Owners, who are encouraged to attend. The time for Board meetings is determined by action of the Board from time to time, and appropriate Notice* will be provided to all Unit Owners. As required by law, the books and records of the Association are available for the inspection of Unit owners for any

proper purpose at reasonable times, provided that reasonable advance notice is provided to the Association.

*11/05 – Notices will be posted on website, posted in Laundry Room window, clubhouse window, management office window. Notices will be delivered to owners upon written request to receive all notices via U. S. Mail.

C. Proof of Homeowner Insurance Coverage

New owners must supply a copy of the required property coverage in accordance with the Homeowner Insurance Resolution of 2003. Buyers must provide proof of insurance prior to closing on the unit. (11/05). Fine for failure to provide proof of current/unexpired homeowner's insurance will accrue at the rate of \$10/day until proper proof is provided and fully in effect.

VI. PETS

.A. GENERAL RULES REGARDING PETS

1. Annually, owner/resident of pet (cat or dog) must supply copy of Village of Hoffman Estates Pet Registration. (added 11/05)
2. All Village of Hoffman Estates ordinances are deemed rules and must be complied with. (added 11/05)
3. No animals, other than dogs, cats or other animals reasonably considered to be household pets, shall be raised, bred, or kept anywhere on the Property, nor shall any animals be kept, bred or maintained for commercial purposes.
4. All pets must be leashed while outdoors or on any Common Property.
5. No pet may be left unattended at any time on the Common Property.
6. No pet shall be allowed to create an unreasonable disturbance or to damage any Common Property or the property of any other Resident.
7. A Unit Owner is responsible for the actions of pets of anyone residing or visiting his Unit, and the costs of repairing any damage caused by a pet shall be assessed to the Unit Owner responsible as a Common Expense.
8. Waste must be removed immediately from common/limited common elements. Owner/tenant is responsible for proper disposal of waste.
9. Pets (dogs and cats) shall be limited to a total of two (2) per unit. (prior to 11/17/98 number of pets grandfathered if registered during initial registration period through 2/28/99).
10. Damage to grass or other landscaping elements will be repaired at the pet owner's expense, and it will be the responsibility of the pet owner to water the new sod or other plant materials. This includes grass damaged by urine

and holes dug in the sod.

11. All pets must be registered with the Management Office. Failure to do so will be considered a violation. This includes animals that are visiting for a period of more than fourteen (14) days duration. New pets must be registered within thirty (30) days of purchase. Application must have photo of pet attached.

12. Excessive or repeated disturbances such as barking or howling, whether inside or outside the unit, are a violation regardless of the time of day.

13. Vicious animals will be treated in an appropriate manner by the proper authorities.

B. ENFORCEMENT

1. The first violation by a pet owner will result in a seventy-five dollar (\$75.00) fine, payable within ten (10) days from the date of the violation letter.

2. A second violation by a pet owner will result in an one hundred dollar (\$150.00) fine, payable within (10) days from the date of the violation letter.

3. A third violation by a pet owner will result in a two hundred dollar (\$200.00) fine, payable within ten (10) days from the date of the violation letter.

4. The fourth violation by a pet owner will result in a letter from the Board of Directors notifying the Unit Owner that the pet or pets must be removed from HILDALE CONDOMINIUM ASSOCIATION property. Removal to take place within three (3) days from the date of the notification.

5. Any Unit Owner who has been found to have been guilty of more than four (4) violations of the above rules shall be deemed to be liable for having a pet which causes or creates a nuisance or unreasonable disturbance within the meaning of Article VII, Section 7.01 (f) of the Declaration. Thereafter the Board, after consideration of the facts and circumstances, may elect to order the Unit Owner to have the pet removed permanently from the Property upon three (3) days written notice to the Owner from the Board or its duly authorized agents.

C. APPEAL OF VIOLATION LETTER

Pet owners have the right to appeal at any level of the enforcement process by responding in writing within ten (10) days of notification to the Board of Directors. If the Board of Directors upholds the appeal, the fine will be refunded.

D. REPORTING A VIOLATION

Only written complaints containing the following information will be considered.

1. Date of Violation
2. Time of Day
3. Location
4. Description of Animal (color, size, breed, etc.)

5. Name and Address of Owner (if known)

Non-residents committing an offense in violation of Hoffman Estates ordinances will be reported to the Village.

VII. VEHICLE REGULATIONS

A. GENERAL RULES REGARDING VEHICLES

1. All resident owned vehicles must be registered with the management office. (added 11/05)
Definition: Resident, either legal owners and *resident* family members, or a documented tenant and parties specifically noted on current lease document. Parking costs are subject to change by Board vote.
2. Commercial vehicles include vehicles with lettering of any type on body of vehicle and used for business/commercial purposes. Commercial vehicle parking is available on a first come, first serve basis in commercial lot on the northwest corner of the property. Cost to be determined by Board of Directors. Current cost is \$50 per month.
3. Parking of any vehicle is permitted only in parking lots. Only owners or renters of carports are permitted to park in carports.
4. Vehicles may not be parked, or stored so as to obstruct passage of other vehicles on the Property. All vehicles shall be parked within permitted limits or within the lines or other marked boundaries for such vehicles.
5. All vehicles are restricted to paved surfaces, including the streets, and parking areas on the Property. There shall be no parking on routes of passage across any other portions of the Property, including all lawn areas, sidewalks and fire lanes. Vehicles shall not be parked or stored in a manner which interferes with ingress to or egress from any portion of the Property.
6. Parking shall not obstruct any sidewalk, indicated walking areas, or slashed area, or the entrance to or exit from any Unit.
7. Permitted Vehicles shall not be parked or stored on any area reserved for the exclusive use of one Owner without the express permission of the Owner or Resident having the right to exclusive use, possession and control of carport parking spaces.
8. Parking or storage of Non-permitted Vehicles on any portion of the Property is expressly prohibited. However, commercial vehicles may park in permitted areas when used for their normal commercial purposes, so long as such parking is only for the period of time necessary to provide the commercial services requested by a Resident or the Association.

B. ENFORCEMENT

1. The provisions set forth herein are intended to supplement, but not replace the Policies and Procedures Regarding Enforcement, which are fully applicable to all violations under these Vehicle Regulations.

2. In the event of a violation of these vehicle rules, vehicles are subject to towing at the owner's expense.
3. In addition to the other provisions for enforcement contained herein and in the Policies and Procedures Regarding Enforcement, the Board shall have authority to tow vehicles which are parked in violation of these rules under the following circumstances:
 - a. When a vehicle has been abandoned (e.g. ceased to be used or left behind), and a notice of such violation was affixed to the vehicle at least seven (7) days earlier, the vehicle may be towed without further notice to the vehicle owner.
 - b. When a vehicle is parked in a fire lane, or is parked in a manner which presents an immediate danger to the Property or to the health, safety and welfare of the any person thereon, the vehicle may be towed immediately without notice to the vehicle owner.

C. NOTICES AND AUTHORIZATION TO TOW

1. In order to insure that potential violators have notice of the fact that their vehicles may be towed, and in accordance with the requirements of the law as set forth in Chapter 18a-100 et seq. of the Illinois Motor Vehicle Code, the Association will have signs posted on the property giving notice that violators of the Vehicle Rules may be towed.
2. The Board or its duly authorized agents shall notify the appropriate companies or individuals to remove vehicle. In addition, when any tow authorized under these rules, the duly authorized agents for the Association shall notify the local police to provide them with the appropriate information concerning the tow and to request their assistance in order to insure that no breach of the peace will occur.
3. The Board may enter an agreement with an appropriate company or individual to effect removal of vehicles pursuant to authorization under these vehicle rules.

D. VEHICLE STICKERS/PARKING (adopted 28 April 2016)

1. All vehicles parking in non-visitor identified parking spaces between 6PM-6AM must permanently affix (use of tape is prohibited) the current Hilldale issued parking permit. Permits are to be installed: front windshield, lower corner of the passenger side of the vehicle.
2. Up to Two (2) Parking Permits will be provided to residents as defined based on their providing required documentation below:

Current IL Driver's License to the Hilldale address
Current State Vehicle Registration

One permit will be provided per licensed driver residing in the unit.

3. Based on availability, current owners of two and three bedroom units may apply for additional parking permit(s) with additional proper documentation, at an additional monthly rate, which is subject to change by vote of the Board. \$50 for 3rd vehicle and \$75 for 4th vehicle.

4. Carport owners are expected to utilize their carports rather than use of, common element, unassigned parking. Carport parking is reserved for documented owners. Carport owners will have the authority to order a tow (with a call to the authorized towing Vendor) for any unauthorized use of their carport parking space.
5. Parking is a limited commodity and resident parking is of primary concern. Therefore, Visitor parking has been allocated in areas where parking is most often unused. Visitor parking will be restricted to VISITOR identified parking spaces between the hours of 6PM-6AM. From 6PM-6AM, Visitor vehicles must utilize VISITOR IDENTIFIED PARKING SPACES ONLY. VISITOR parking spaces will be subject to towing between the hours of Midnight-6AM.
6. Visitor parking space use requires: Owners (identifying themselves with Hilldale account #) to call the current towing Vendor, **Redmon's Towing at 847-895-6162**, each night of visitor space use by 11 PM providing vehicle information: Make, Model, Color and Plate.
7. Visitor parking spaces may not be utilized by the same vehicle more than 4 consecutive days or 5 total days per month.
8. Longer term visitor parking permit will be issued based on availability; cost: \$3 per night.
9. Motorcycle parking will be allowed between April-October and will be first come, first serve in allocated shared, parking spaces. Monthly rates for additional vehicle apply.

VIII. RULES REGARDING CLOSING AND TRANSFER OF OWNERSHIP

A. In the event of any resale of a Unit the following rules shall apply, except to the extent they are in conflict with the Act, in which case the provisions of the Act shall control.

B. As required by Section 22.1 of the Act, the Association shall provide the required information to any Unit Owner who requests it. The information shall be in a form similar to that attached hereto as Exhibit F. As required by the Act, the information shall be provided only:

1. When requested in writing by the Unit Owner or his or her agents, and
2. Within ten (10) days of the request, given that the maintenance inspection has been completed.

The Association may charge a fee in the amount of ten cents (\$0.10) per page of copy for the cost of this service, or such higher amount as may be permitted by law. However, in the event a request is made which requires this information to be provided in less than the thirty (30) day period provided by statute, the Association will charge the Unit Owner an additional fee. The additional fee shall be calculated by taking the difference between thirty (30) days and the number of days remaining until the information must be provided and by multiplying that figure by ten dollars (\$10.00) per day.

C. As required by Section 18(h) of the Act, the Association shall provide any Unit Owner, upon ten (10) days notice to the Board or its authorized agents, a statement of his account setting forth the amount of any unpaid assessments and other charges due and owing from such Owner. In accordance with the statute, the Association may charge a reasonable fee for this service, which is presently set at fifteen dollars (\$15.00) per request. This amount may be changed from time to time by the Board.

In the event a request is made which requires this information to be provided in less than the ten (10) day period provided by statute, the Association will charge the Unit Owner an additional fee. The additional fee shall be calculated by taking the difference between (10) days and the number of days remaining until the information must be provided and multiplying that figure by ten dollars (\$10.00) per day.

When the Association is requested by a Unit Owner to provide a letter showing the status of assessments, the letter provided shall be substantially in the form set forth in Exhibit F.

D. Anytime a Unit within the Association is sold or otherwise transferred, the prospective owner shall be contacted, either directly or through the present owner, and requested to supply information essential to the Association's records and efficient functioning. The prospective owner shall be required to supply the information requested therein. Such letter shall be substantially in the form set forth in Exhibit G.

The new owner shall also supply a photocopy of the deed and any mortgage against the property, so that the Association can maintain an accurate list of title holders and mortgagees.

If the new Unit Owner so desires, information on purchase price, financial terms of the mortgage and other information supplied by the prospective owner shall be kept confidential and shall be used for Association purposes only. In the event a Unit Owner fails to cooperate with the Board in providing the information requested in this paragraph, the Board may suspend the rights and privileges of ownership as to that Unit Owner until the requested information is supplied. Furthermore, all costs and expenses of the Board in obtaining the requested information, including attorneys, shall be assessed to the account of that Unit Owner as a Common Expense.

E. At the time the above information is requested, the Association shall also solicit a proxy from each new Unit Owner. The proxy, a letter of explanation and instructions for completing the proxy shall be substantially in the form set forth in Exhibit H.

F. As of July 25, 2000, new owners will be required to attend a meeting to review Rules/Regulations, maintenance responsibilities, and other pertinent information with Management. Upon completion of the meeting a \$50 rebate credit of move-in fee will be made to unit owner's account.

(revised 5/01)

G. Effective 06/01/01 closings. A move-out fee of \$125 payable at closing will be charged to unit owners (seller). A move-in fee of \$125 will be charged at closing table to new owners (buyer), with a \$50 credit on account to new unit owner for attendance at a new homeowner orientation meeting. New owners will be notified by mail of upcoming meeting dates.

H. Effective 06/01/01 closings. An inspection prior to issuance of paid assessment letter for closing of unit will be made by Management/Maintenance Supervisor. The inspection will include check of water shut-off, plumbing operations and other related maintenance items.

I. Refinance fee charge for appraisal information, questionnaire, paid assessment letter is forty dollars (\$40).

J. Proof of Homeowner Insurance Coverage

1) New Owners must supply a copy of the required property coverage in accordance with Homeowner Insurance Resolution of 2003.

2) Buyer must provide proof of insurance prior to closing on the unit. (rev. 11/05)

IX. RULES RELATED TO LEASES, TENANTS AND NON-RESIDENT UNIT OWNERS

A. All Unit Owners who do not reside in a Unit owned by them shall provide the Board with their permanent residence address and phone numbers where they may be reached in an emergency, both at home and at work. Any expenses of the Board incurred in locating a Unit Owner who fails to provide such information shall be assessed to that Unit Owner as a Common Expense. Unless otherwise provided by law, any Unit Owner who fails to provide such information shall be deemed to have waived the right to receive notices at any address other than the address of the Unit, and the Board shall not be liable for any loss, damage, injury or prejudice to the rights of any such Unit Owner caused by any delays in receiving notice.

B. No Unit Owner may lease less than the entire Unit, nor may the Unit be leased for

transient or hotel purposes. Lease provided must be of a duration of no less than one (1) year. (11/05)

C. Every lease shall be in writing and shall be subject in all respects to the provisions of the Declaration, By-laws, and Rules and Regulations of the Association, as required by VII, Section 7.01(n) of the Declaration and Section 18(n) of the Act, as amended from time to time hereafter. Any Owner who has leased a Unit without a written lease shall, within thirty (30) days after the effective date of these rules, reduce the lease agreement to writing in a form which complies with all the provisions of these rules.

D. Each Unit Owner shall be responsible for providing his or her tenants with copies of Declaration, Bylaws and Rules and Regulations. In addition, the Association shall be given both a signed original lease and Rider to every lease of any Unit on the property prior to the occupancy date on said lease. Any expenses incurred by the Association in obtaining these documents shall be assessed to the Unit Owner responsible as a Common Expense.

E. If a tenant violates any provision of the Declaration, Bylaws or Rules and Regulations, the Board, at its discretion, shall determine what action or actions should be taken against the Unit Owner or tenant, as the case may be. When the Board, at its discretion, determines that a violation or series of violations warrant termination of the lease, the Board may take whatever action or actions are necessary to terminate the lease.

F. All expenses of the Board, in connection with any violations under these rules, shall be assessed to the account of the Unit Owner responsible as a Common Expense.

G. Provisions herein which relate to the execution of new leases shall become effective upon the expiration of any lease which is currently in effect. However, the requirements herein are effective immediately. Unit Owners shall supply the Association with a photocopy of any existing lease no later than thirty (30) days after the effective date of these Rules.

H. A \$125 administrative fee, over the life of the lease will be charged each homeowner of a leased unit. Units with current leases (5/99) in force will be grandfathered. New leases will result in the \$125 fee payable with filing of new lease.

I. As of August, 2000 tenants will be required to attend a meeting with Management to review the Rules/Regulations.

J. Lease, rider, drug free housing addendum, unit occupancy, vehicle registration, renter insurance coverage and payment of \$125 life of lease fee by certified funds must be supplied to management no less than 10 (business) days prior to occupancy. (added 11/05)

K. Any member renting out his or her Unit shall be deemed to have also assigned to his or her tenant the appurtenant rights of the Member relating to the use of the amenities and common areas, including, but not limited to, use of parking facilities, pools, storage areas, during the term of the rental. The Member shall, however, retain all voting rights relating to the Unit. (added 11/05)

L. In the case of repeated, uncured violations of Association rules by a tenant, the Association, after 30 days' advance written notice to the Member owning the Unit in which the tenant resides, may, as authorized agent of the Member, commence an eviction proceeding against the tenant. The Member shall be conclusively deemed to have granted the Association a Power of Attorney, coupled with an interest, for this purpose. (added 11/05)